The Supreme Court, however, held that the Preamble is a part of the Constitution. The Court stated that the opinion tendered by it in the *Berubari Union* (1960) in this regard was wrong, and held that the Preamble can be amended, subject to the condition that no amendment is done to the 'basic features'. In other words, the Court held that the basic elements or the fundamental features of the Constitution as contained in the Preamble cannot be altered by an amendment under Article 368. The Court observed, 'The edifice of our Constitution is based upon the basic elements mentioned in the Preamble. If any of these elements are removed, the structure will not survive and it will not be the same Constitution or it cannot maintain its identity. An amending power cannot be interpreted so as to confer power on the Parliament to take away any of these fundamental and basic characteristics of the polity'.

The Preamble has been amended only once so far, in 1976, by the 42nd Constitutional Amendment Act, which has added three new words—Socialist, Secular and Integrity—to the Preamble. This amendment was held to be valid.

[1]Moved by Nehru on December 13, 1946 and adopted by the Constituent Assembly on January 22, 1947.

[2]Till the passage of the Indian Independence Act, 1947, India was a dependency (colony) of the British Empire. From August 15, 1947 to January 26, 1950, India's political status was that of a dominion in the British Commonwealth of Nations. India ceased to be a British dominion on January 26, 1950, by declaring herself a sovereign republic. However, Pakistan continued to be a British Dominion until 1956.

[3]To dispel the lurking fears of some members of the Constituent Assembly, Pandit Nehru said in 1949 thus: 'We took pledge long ago to achieve *Purna Swaraj.* We have achieved it. Does a nation lose its independence by an alliance with another country? Alliance normally means commitments. The free association of the sovereign Commonwealth of Nations does not involve such commitments. Its very strength lies in its flexibility and its complete freedom. It is well-known that it is open to any member-nation to go out of the commonwealth if it so chooses'. He further stated, 'It is an agreement by free will, to be terminated by free will'.

[4]India became a member of the UNO in 1945.

[5]The Resolution said: 'In order to realise the object of Congress and to further the objectives stated in the Preamble and Directive Principles of State Policy of the Constitution of India, planning should take place with a view to the establishment of a socialistic pattern of society, where the principal means of production are under social ownership or control, production is progressively speeded up and there is equitable distribution of the national wealth'.

[6]The Prime Minister, Indira Gandhi, said, 'We have always said that we have our own brand of socialism. We will nationalise the sectors where we feel the necessity. Just nationalisation is not our type of socialism'.

[7]*G.B. Pant University of Agriculture and Technology* vs. *State of Uttar Pradesh* (2000).

[8]*Nakara* vs. *Union of India* (1982).

[9]On the basis of the attitude of the state towards religion, three types of states can be conceived of:

1. *Atheistic State:* The state is anti-religion and hence, condemns all religions.